

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

ERNESTO CASTILLO,

Plaintiff,

-against-

Plaintiff designates
Queens County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

THE CITY OF NEW YORK,
NYPD DETECTIVE CHRISTOPHER CRUZADO and
NYPD DETECTIVE ALEXANDROS KALOGIROS,

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 20, 2021

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

THE CITY OF NEW YORK, c/o NYC Corp. Counsel, 100 Church St., New York, NY 10007

NYPD DETECTIVE CHRISTOPHER CRUZADO, c/o 113 Detective Squad, 167-02 Baisley Blvd. Jamaica, NY 11434

NYPD DETECTIVE ALEXANDROS KALOGIROS, c/o 113 Detective Squad, 167-02 Baisley Blvd. Jamaica, NY 11434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
ERNESTO CASTILLO,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE CHRISTOPHER CRUZADO and
NYPD DETECTIVE ALEXANDROS KALOGIROS,

Defendants.

----- X

Plaintiff, by his attorneys Sivin, Miller & Roche, LLP, complaining of defendants,
alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter “the City”) was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.

2. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter “the NYPD”).

3. That at all times herein mentioned, defendant NYPD Detective Christopher
Cruzado (hereinafter “Cruzado”) was and is employed as a detective with the NYPD.

4. That at all times herein mentioned, Cruzado was acting within the course and
scope of his employment as a detective with the NYPD.

5. That at all times herein mentioned, Cruzado was acting under color of state
law.

6. That at all times herein mentioned, defendant NYPD Detective Alexandros Kalogiros (hereinafter “Kalogiros”) was and is employed as a detective with the NYPD.

7. That at all times herein mentioned, Kalogiros was acting within the course and scope of his employment as a detective with the NYPD.

8. That at all times herein mentioned, Kalogiros was acting under color of state law.

9. That prior to December 15, 2017, Cruzado and Kalogiros had engaged in a pattern and practice of violating the civil and constitutional rights of citizens of the State of New York, and had been the subject of numerous lawsuits and other complaints, including but not limited to complaints filed with the Civilian Complaint Review Board, alleging that these detectives had violated the civil and constitutional rights of others.

10. That prior to December 15, 2017, the City knew that Cruzado and Kalogiros had engaged in a pattern and practice of violating the civil and constitutional rights of citizens of the State of New York, and had been the subject of numerous lawsuits and other complaints, including but not limited to complaints filed with the Civilian Complaint Review Board, alleging that these detectives had violated the civil and constitutional rights of others.

11. That despite the City’s knowledge of Cruzado and Kalogiros’ pattern and practice, the City deliberately failed and refused to take any remedial steps and acted with deliberate indifference toward that pattern and practice.

12. That the actions of Cruzado and Kalogiros, as alleged below, followed and resulted from the City’s deliberate indifference to that pattern and practice.

THE FACTS

13. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

14. That this lawsuit seeks redress for, among other things, plaintiff's false arrest, malicious prosecution, and fourteen-month incarceration for a crime that he did not commit and which defendants knew and/or had every reason to know plaintiff did not commit.

15. That at all times herein mentioned, Cruzado led an investigation into a complaint by Hector Casas (hereinafter "Casas"), in which Casas purportedly alleged that on December 15, 2017, inside 119-72 Guy R. Brewer Blvd., Jamaica, NY, he had been robbed by three individuals and shot by one of those individuals.

16. That or about January 24, 2018, in response to a request of him by the NYPD, plaintiff voluntarily appeared at the 113th Police Precinct, in the County of Queens, City and State of New York.

17. That after he voluntarily appeared at the police precinct, plaintiff was arrested by and/or at the instigation of Cruzado.

18. That the arrest of plaintiff was undertaken without a warrant and without probable cause to believe that plaintiff had committed or was about to commit any crime.

19. That on or about January 24, 2018, Cruzado also initiated and/or caused to be initiated a prosecution of plaintiff, in which plaintiff was accused by Cruzado of various crimes in connection with the alleged December 15, 2017 robbery and shooting of Casas in Jamaica, NY.

20. That the prosecution of plaintiff was initiated by Cruzado without probable cause to believe that plaintiff had committed any of the crimes with which he was charged.

21. That in support of the criminal prosecution, Cruzado authored and signed a Criminal Court Complaint in which he made sworn allegations against plaintiff that were untrue and that Cruzado knew were untrue, including but not limited to the allegation that Casas positively identified plaintiff of having shot and robbed Casas.

22. That in support of the criminal prosecution, Cruzado and Kalogiros also fabricated evidence and conveyed that evidence to fellow officers, prosecutors, the Grand Jury, and the Criminal Court, and knowingly conveyed false information to fellow officers, prosecutors, the Grand Jury, and the Criminal Court.

23. That among the fabricated evidence and false information conveyed by Cruzado and Kalogiros were the claims that a) Casas positively, without reservation, and without undue influence and suggestion, identified plaintiff as his assailant; b) Casas positively, without reservation, and without undue influence, identified plaintiff in a photo array; and c) Casas positively, without reservation, and without undue influence, identified plaintiff in a lineup.

24. That in support of the criminal prosecution, Cruzado and Kalogiros also deliberately ignored and withheld from fellow officers, prosecutors, the Grand Jury, and the Criminal Court, evidence that tended to exculpate plaintiff, including but not limited to a) initial statements by Casas that he neither recognized nor could identify any of his assailants; b) the existence of alibi witnesses who would have established plaintiff's whereabouts at the time of the attack on Casas; and b) the existence of phone and GPS records that would have established plaintiff's whereabouts at the time of the attack on Casas.

25. That the fabricated evidence, false information, and withheld exculpatory evidence were material in nature and were of the type likely to influence a court and jury as to

plaintiff's guilt or evidence, and to influence any determination as to the appropriate bail, if any, to be imposed upon plaintiff.

26. That as a result of the aforementioned fabricated evidence, false information, and withheld exculpatory evidence, plaintiff was subjected to very high bail, was incarcerated for a period of approximately fourteen months, and was otherwise deprived of his liberty.

27. That on or about March 11, 2019, all criminal charges against plaintiff were dismissed on the merits, and the criminal proceeding terminated favorably to plaintiff.

28. That at all times relevant herein, Cruzado and Kalogiros observed and were aware of the unconstitutional actions of their fellow officers, had opportunities to intervene to prevent and/or stop those actions, but intentionally and deliberately failed to do so.

29. That the aforementioned actions of Cruzado and Kalogiros were intentional and malicious in nature.

30. That as a result of the foregoing actions by defendants herein, plaintiff endured and continued to endure pain and suffering, loss of enjoyment of life, loss of liberty, economic loss, and other damages.

FIRST CAUSE OF ACTION AGAINST CRUZADO and KALOGIROS

(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations,
Based on False Arrest/Imprisonment and Malicious Prosecution)

31. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

32. That the aforesaid actions by Cruzado and Kalogiros in improperly causing the detention, arrest, and prosecution of plaintiff, constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due

process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION AGAINST CRUZADO and KALOGIROS

(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations,
Based on Failure to Intervene)

33. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

34. That the aforesaid actions by Cruzado and Kalogiros in failing to intervene to prevent and/or stop the aforesaid improper conduct by his fellow officers constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST CRUZADO and KALOGIROS

(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid actions by Cruzado and Kalogiros constitute denials of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and

Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST THE CITY

(*Monell* Claim: Deliberate Indifference)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforesaid actions by Cruzado and Kalogiros and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of misconduct by Cruzado and Kalogiros, thus evincing a *de facto* pattern, practice, and policy of the City involving the violations of the constitutional rights of citizens of the State of New York.

39. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Cruzado and Kalogiros in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against all defendants

pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
January 20, 2021

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

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